

ACCEPTANCE OF ELECTRONIC SIGNATURES AND RECORDS

This policy defines electronic or digital signatures and the criteria for their use and acceptance in Loudoun County Public School (LCPS). Electronic or digital signatures can take many forms and can be created using many different types of technology. The authenticity and reliability of electronic signatures relating to transactions are dependent on the accompanying processes, supplemental records, and the overall context in which records are created, transferred, and signed. This policy provides the guidance for the use of electronic records and signatures in connection with communications with parents, guardians, or other persons having control over a child enrolled in this division.

A. Definitions

1. “Attribution” – An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.
2. “Electronic Signature”- An electronic sound, symbol, or process attached to or logically associated with a record and executed or adopted by a person with the intent to sign the record.
3. “Electronic Record” – Any record created, generated, sent, communicated, received, or stored by electronic means.

B. Applicability. This policy applies to parents, guardians, and other persons having control or charge of a child enrolled in the division; and also to individuals affiliated with the division, whether paid or unpaid, including but not limited to teachers, administrators, staff, students, affiliates, and volunteers.

C. Electronic Records. Electronic records created or received by the division shall be appropriately attributed to the individual(s) responsible for their creation and/or authorization or approval. The division shall utilize available technology to implement reliable methods for generating and managing electronic records. Any electronic record filed with or issued by the division may be given full force and effect of a paper communication if the following conditions are satisfied:

1. The communication is an electronic filing or recording and LCPS agrees to accept or send such communication electronically; and
2. If a signature is required on the record or communication by any statute, rule, or other applicable law or School Board policy, the electronic signature must

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conform to the requirements set forth in this policy governing the use of electronic signatures.

D. Electronic Signatures. An electronic signature may be used if the law requires a signature unless there is a specific statute, regulation, or policy that requires records to be signed in non-electronic form. The issuance and/or acceptance of an electronic signature may be permitted in accordance with the provisions of this policy and all applicable state and federal law. If permitted, such electronic signature shall have the full force and effect of a manual signature only if the electronic signature satisfies all of the following requirements:

1. The electronic signature identifies the individual signing the document by their name and title;
2. The identity of the individual signing with an electronic signature is capable of being validated through the use of an audit trail;
3. The electronic signature and the document to which it is affixed cannot be altered once the electronic signature has been affixed; and
4. The electronic signature conforms to all other provisions of this policy.

E. Acceptance, Use and Issuance of Electronic Records and Signatures. LCPS shall maintain an electronic recordkeeping system that can receive, store, and reproduce electronic records and signatures relating to communications and transactions in their original form. Such system shall include security procedures whereby LCPS can (a) verify the attribution of a signature to a specific individual, (b) detect changes or errors in the information contained in a record submitted electronically, (c) protect and prevent access, alteration, manipulation or use by an unauthorized person, and (d) provide for nonrepudiation through strong and substantial evidence that will make it difficult for the signer to claim that the electronic representation is not valid. LCPS shall ensure that all electronic records and signatures are capable of being accurately reproduced for later reference and retained until such time as all legally mandated retention requirements are satisfied. LCPS may receive and accept as original, electronic records and signatures so long as the communication, on its face, appears to be authentic.

Adopted: 9/26/17

Confirmed: 10/5/22 (with technical changes)

Leg. Ref.: Code of Virginia, 1950, as amended, §§ [22.1-79.3\(G\)](#), [59.1-479](#) *et seq.*